



File No: EXP202306046

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On September 26, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against TITAN STRONG, S.L. (hereinafter referred to as the respondent). The initiation agreement was notified, and after analyzing the allegations presented, on November 17, 2023, the proposed resolution was issued, which is transcribed below:

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File No: EXP202306046.

Sanctioning Procedure No: PS/000385/2023.

PROPOSED RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on April 22, 2023. The complaint was directed against the gym B.B.B., owned by the entity TITAN STRONG, S.L. with NIF B88048608 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1 on the façade of the building of which it is a neighbor.

The complainant states briefly that:

- The respondent is responsible for the aforementioned gym, on whose façade 3 video surveillance cameras have been installed, oriented towards the public road and the accesses to the building where the establishment is located, without prior authorization for this. Specifically, it is stated literally that: "One of the cameras points to the public road, private property, and the premises of another owner. The other camera points to the public road and the entrance to the neighbors' garage."
- Having been requested by the property manager to remove them, with no response, they request an inspection of the same and their permits.

The documents provided as evidence for the complaint are:

- Photographic report: 3 photos taken showing the location of the three cameras on the façade of the building.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), after verifying that the ownership of the mentioned gym corresponded to the respondent, the complaint was forwarded to them, to provide within a period of 1 month the necessary documentation and information to determine whether there is a breach of the regulations.

This request asks, among other data and documents, that:

- The NIF number and the contact email of the person responsible for the video surveillance system be indicated, as well as the retention period of the images.
- The number of cameras in the surveillance system be stated, providing photographs of all these devices, as well as photographs of the monitor, mobile screen, or equivalent system used for viewing the images, in which the areas within the field of vision of the cameras can be appreciated.
- Furthermore, it is also requested to provide photographs of the sign or signs that warn of the existence of a video-surveilled area, in which the information contained in the sign is clearly visible, as well as its location.

The forwarding, which was carried out in accordance with the regulations established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was received by the responsible party within the availability period, on May 11, 2023.

THIRD: On June 5, 2023, a written response from the respondent was received in this Agency, in which they partially comply with the information request made, as photographs of the aforementioned

sign or signs are not provided, but the following is summarized:

- The NIF and the email contact of the two persons responsible for the video surveillance system, who are listed as administrators of the respondent entity TITAN STRONG, S.L.
- It is indicated that the retention period of the images is 3 days.
- It is stated that there are two cameras, which are only viewed on the mobile devices of the two aforementioned responsible persons (who are listed as administrators of the respondent entity), attaching the required photos, in which the field of vision subject to recording by both can be observed.
- It is also stated that a prior consultation was made to the AEPD to install the cameras -not accredited-, and part of a public deed is provided.

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indicating that the courtyard where the cameras are located is for the exclusive and private use of the premises, therefore, in principle, authorization from the homeowners' association would not be necessary for their installation, as stated by the complainant.

FOURTH: In accordance with Article 65 of the LOPDGDD, on July 22, the complaint submitted by the complainant was admitted for processing.

FIFTH: On August 14, 2023, a report was received from the Superior Police Headquarters of the Municipal Police of the City of Madrid, which is included in this file as it refers to the party being complained about and is based on the same facts addressed herein.

In the attached police report, the law enforcement officers state that they conducted an inspection at the B.B.B. gym on August 4, 2023, as a result of a prior complaint filed, and as a consequence, they report a possible violation of data protection regulations by the party being complained about, based on the following facts established in the report:

- It is confirmed that there are two cameras, one directed towards the access door of the gym and in the same direction as the access portal to the residential units of the building.
- The responsible party, Ms. C.C.C., was contacted by telephone through the gym staff, and she refused to provide further information about the system.
- Photos of the informational sign regarding the video surveillance system are provided, clearly showing its content.

SIXTH: On September 26, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the party being complained about, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SEVENTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) on September 26, 2023. The party being complained about submitted a written statement of allegations on October 10, 2023, based on the following grounds, which will be analyzed in the legal grounds:

1. That photographs of the sign or signs warning of the existence of the cameras, which were requested by this Agency on May 10 of the same year, were indeed provided.
2. Reasons why not all the information required by the municipal police officers who came to inspect the establishment was provided, as stated in the complaint from the Superior Police Headquarters of the City of Madrid, attached to the proceedings.
3. That the reason for the complaint is not to altruistically preserve the right to personal data protection of passersby, but to carry out with

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Impunity for assaults against the premises, the owners, and clients of the gym B.B.B.

4.

Reasons why, to preserve the safety of the premises, a front camera had to be installed, without the possibility of avoiding recording the public road and lack of intent.

5.

Compliance with the system adjustment measures that were agreed upon in the initiation agreement, through the installation of privacy masks on the front camera.

6.

At all times, the prescriptions of the GDPR have been followed, having limited the number of cameras to those strictly necessary for the fulfillment of the surveillance function, installing two, one for each side of the courtyard, and another front-facing towards the access door to the public road and the fence.

Along with this document, the following documentation is attached:

- Photograph of the current field of vision of the front camera, showing that a privacy mask has been placed.

- 4 Police reports confirming that 4 complaints were filed by the owners of Gym B.B.B. with the National Police, reporting the alleged commission of 3 thefts of tiles and racks from the establishment that occurred on October 14, 16, and November 16, 2022, as well as damage to the perimeter fence of the gym on November 19 and December 5, 2022, the date on which it was found torn down. In the last two complaints, the complainants indicate that the surveillance cameras show that the damages were caused by the claimant, in collusion with other individuals. There is no record of verification by the National Police nor the initiation of criminal proceedings regarding these facts.

EIGHTH: Attached as an annex is a list of documents in the procedure.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The GYM B.B.B., located at ***ADDRESS.1, has a video surveillance system installed, consisting of three cameras located on its facade, two lateral and one front. As of the date of the complaint, it is confirmed that the front camera, due to its location and orientation, was capable of capturing the public road beyond its private or common area of private use, as its field of vision captures the access door to the gym, the perimeter fence, and a considerable portion of the public road that can capture both vehicles and individuals passing by the sidewalk adjacent to the fence, and even the road and the sidewalk across the street.

SECOND: As of the date of the complaint filed, the respondent had placed the mandatory video surveillance sign, with the information required by Article 13 of the GDPR.

THIRD: TITAN STRONG, S.L. is the owner of the commercial establishment GYM B.B.B. and is listed as the main responsible party for the installation of video surveillance on the informational sign of the video surveillance system, being the data controller for the purposes of the GDPR.

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FOURTH: Subsequently to the agreement to initiate the present sanctioning procedure, the respondent demonstrates that it has placed a privacy mask on the front camera of the gym, which conceals and prevents excessive visualization of the captured images, allowing for their anonymization, as long as its placement, location, and fixation are maintained henceforth.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47,

48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the initiation agreement

In response to the allegations presented by the respondent entity on October 10, 2023, it should be noted that none of the reasons put forward in its writing exempt it from liability for having committed the infringement attributed in the present sanctioning procedure, for the following reasons:

1.

Regarding the submission by the respondent of the visible photographs of the sign or signs indicating the area under video surveillance.

The respondent states: "The assertion made in the Initiation Agreement regarding the respondent not having submitted the visible photographs of the sign or signs warning of the existence of such cameras within the granted deadline is untrue, stating that these photos were indeed submitted. They were provided in a single document along with the photos of the cameras, as specified in the submission receipt (attached to this writing)."

This allegation is of no relevance for the purposes of determining whether the administrative infringement attributed in the present procedure exists, which is focused on assessing whether the cameras installed on the facade of the gym are capturing excessive images of the public thoroughfare due to the alleged infringement of Article 5.1.c) of the GDPR, having been expressly stated in the initiation agreement that the respondent complied with the requirements.

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requirements regarding the placement of informational signs, therefore it was not appropriate to attribute the violation of Article 13 of the GDPR in this case.

However, it should be clarified that the mention in the initiation agreement stating that the respondent "does not provide the visible photographs of the monitored area sign within the deadline" does correspond to reality, since the only photograph of the signs that was submitted with their letter dated June 5, 2023, was taken from such a wide/distant angle that it did not allow for reading the information contained in that sign, as required by Articles 15 to 22 of the GDPR.

And precisely for this reason, it was considered that the photograph of the sign provided by the respondent was not sufficiently visible, which never harmed the respondent, since, thanks to the photographs provided by the municipal police, in which "the content of the sign was clearly visible," it was verified that the sign placed by the respondent on the facade met the information requirements mandated by the regulations. And no responsibility has ever been attributed for this.

Therefore, what is relevant in this case is that the photograph is part of the present procedure, and that it has been considered valid evidence to demonstrate that the respondent complies with the requirements regarding signs, and not to attribute the corresponding administrative violation, being entirely indifferent whether the photograph in question was provided by the respondent or the authority agents, since the respondent is not being judged for having failed to comply with the initial request made.

1.

Regarding the events that occurred during the inspection carried out by the municipal police on August 4, 2023, and the statements referred to in the Report of August 16 by the agents.

The respondent states in their allegations: "Regarding the complaint from the Superior Police Headquarters of the Madrid City Council, they appeared at the request of the complaining party. They

contacted C.C.C. by phone, who informed them that she had installed those cameras for security due to the thefts and assaults she was experiencing, after a phone consultation with the AEPD and that she had already sent the requested documentation to the aforementioned Agency. Having nothing more to report by phone and considering that there was also nothing more to inform for the knowledge of the police, (it should be noted that this is a call from someone who claims to be a municipal police officer but whose veracity cannot be determined at that moment, considering that C.C.C.'s phone number is publicly listed)."

This version coincides with that offered by the agents in their report, although it is not for this authority to assess the reasons why the data controller - Ms. C.C.C. - decided not to inform the agents, as it is entirely irrelevant for the determination of the violation attributed, and it is not the subject of this procedure nor within the competence of this authority to determine and clarify responsibilities arising from the possible compliance or non-compliance with the requirements of the Security Forces and Corps.

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2.

Regarding the possible "hidden" motives of the complaint filed, based on its alleged intention to carry out with impunity assaults against the premises, the owners, and clients of the gym B.B.B.

Likewise, to determine whether the respondent violated Article 5.1.c of the GDPR, the intention of the complainant, referred to by the respondent in the following terms: "That the reason for their complaint is not to altruistically preserve the right to personal data protection of passersby, but rather to have us remove the cameras so that they are not captured when they carry out their assaults against the premises, the owners, and clients of the gym B.B.B. Their intention is to carry out their actions with total impunity. Attached, as evidence, are some of the reports of thefts and assaults suffered by the neighbors, among whom is very actively the complainant, A.A.A., and other members of her family." In this regard, the speaker provides 4 police reports, 2 of which report the commission of an alleged crime of theft/larceny of tiles and racks from their establishment dated October 14 and 16, 2022, and November 13, 2022, stating that on the first occasion they could not identify the thief as there was no camera monitoring the perimeter fence over which he/she allegedly jumped, and after having installed a new camera and an alarm system, they suffered another attempted theft in which the individual in question could not be identified either.

In the other 2 reports, damage to the perimeter fence of their establishment is reported, dated November 19, 2022, which was torn down on December 3, 2022, identifying in both alleged crimes/offenses of damage the complainant and other aggressors, whom they claim to have seen on the surveillance cameras.

From the complaints filed—whose admission for processing is unknown—it can be inferred a priori that the purpose of installing the surveillance system pursued by the respondent was to preserve the security of a premises and identify those responsible who had already been attacking it prior to and after the installation of the cameras. Based on this, it is understood that its installation was initially justified, being lawful according to the provisions of Article 6 of the GDPR, as long as the system complied with the principles and requirements established in data protection and video surveillance, which did not happen, since, as will be analyzed later, the respondent ended up violating the Principle of data minimization by capturing excessive images that were not necessary or appropriate to protect this security.

While the concern of the respondent is understandable, it must be clarified that having been a victim of previous thefts or damages and the occurrence of a high risk of their repetition is not an excuse to install a system that violates data protection regulations, in the terms outlined.

This authority cannot assess the reported criminal offenses nor take them into account unless they are established as proven facts in a final judgment, provided that they are relevant for determining the violations and sanctions subject to this procedure. Only the police authorities, and/or the

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Judicial authorities, who must assess who the alleged responsible parties were, and judge the intention of the claimant referred to by the respondent, if applicable.

This sanctioning procedure is not the appropriate forum to assess the intention of the claimants/complainants, as its purpose is limited to evaluating the proven facts that are recorded in the claims or complaints, and analyzing whether administrative responsibility exists, only assessing whether there was intent or negligence on the part of the individual being investigated or alleged responsible party.

3.

Regarding the lack of intent of the respondent, and the alleged impossibility of preserving the security of the premises without capturing public space.

In this regard, the respondent states that: "Regarding the placement of the cameras, in the frequently asked questions of the AEPD, section 8. VIDEO SURVEILLANCE, the following is included: 'Can public space be recorded for security purposes? The capture and recording of images of public space for security purposes is a function reserved for the Security Forces and Corps. Recording of that part of public space that is essential for the intended purpose will only be allowed, or if it is impossible to avoid it due to the location of the cameras. This same information was provided by phone from the AEPD in response to the inquiry made prior to the installation of the two surveillance cameras. The courtyard surrounding the gym is a narrow strip, and the placement of the front camera to monitor the courtyard space and the fence that delineates it made it impossible to avoid recording public space. In this action, there has been neither bad faith nor intent, simply the desire to protect the private space from aggression. And there has always been the confidence that actions were being taken in accordance with the regulations.'

Not only is there no doubt about the lack of bad faith or intent of the respondent, but this has already been assessed when setting the initial proposed sanction in the initiation agreement, which is maintained in this proposal, given that it should not be forgotten that the proposed fine amount (500 euros) is manifestly lower than the maximum set by law (up to 20,000,000 euros).

However, the respondent is guilty of the infringement committed, as they acted negligently by recording these excessive images, and this is also worthy of reproach, and therefore, fits the type and is sanctionable. As they themselves could verify by placing the privacy mask, there was indeed a way to prevent the front camera from recording the images of public space that are considered excessive. There is no doubt that the respondent should have and had the possibility to better inform themselves, but they did not "discover" it until it was indicated to them in the initiation agreement of the present sanctioning procedure that masks could be a possible solution to the difficulty they faced in capturing only the necessary part of public space to monitor the access areas to the gym and identify potential offenders. And this possibility was available to them as it is stated in the Video Surveillance Guide published on the AEPD website, which clearly refers to them and other guidelines on how to orient the cameras to avoid disproportionate captures.

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Even assuming that the calls referred to were made - of which there is no evidence - it must be stated that a mere telephone inquiry would not, in any case, replace the obligation of the data controller to ensure that the cameras are not capturing excessive images in the specific case at hand. Telephone inquiries to the AEPD - whose responses may be susceptible to misinterpretation by the recipient - do not operate as a sort of "approval" as the respondent believed to obtain, since it is evident that the

agents who handle the calls are not authorized to carry out "in situ" checks or visual inspections of the fields of vision that would be required to verify these aspects, and therefore can only provide general information and cannot verify whether the parties involved have correctly applied the regulations.

4.

Having complied with the security measures adopted in the initiation agreement, by placing privacy masks on the front camera, which are attached.

As previously mentioned, the respondent provides a photograph showing that they have proceeded to place the privacy masks that were cited as one of the possible measures that could adjust the installed video surveillance system to the applicable regulations, since these allow for the concealment or anonymization of the excess captured, as was stated in Recital VII of the initiation agreement of this procedure.

Based on the provided photograph, it is considered that the respondent has corrected the situation of excessive capture by the front camera, since the mask placed has concealed the parts that captured the public road up to a reasonable limit that allows for continued visibility of the fence, the access door, and the interior area of the gym for the purpose of preserving the safety of the premises and the people who frequent it.

Consequently, this proposal will not contain a ruling regarding the possibility that the Resolution issued may order adjustment measures in accordance with the provisions of the aforementioned article 58.2 d) of the GDPR. However, in the event that it is proven that excessive image capture occurs again, as a result of modifying the orientation of the cameras, removing the masks, modifying them, or placing new cameras in such a way that excessive images of the public road are recorded again, it will be possible to order such measures in the Resolution adopted, as well as to initiate a new sanctioning procedure for the commission of infractions committed after the aforementioned Resolution.

Regarding the infraction that this procedure concerns, it should be noted that the repair or adjustment of the regulations is not provided as a cause for exemption from liability or mitigation of the sanction, so it is appropriate to maintain the attribution of the infraction of article 5.1.c) of the GDPR, since the excessive capture had already been consummated, and committed continuously, at least from the date of the complaint until the placement of the aforementioned mask.

5.

At all times, the provisions of the GDPR have been followed, having limited the number of cameras to those strictly necessary for the

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compliance with the surveillance function, placing two, one for each side of the courtyard.

As already indicated, it is not disputed that the defendant has complied with the other regulations provided in the GDPR, nor is the number of cameras installed considered excessive - which are three and not two - this procedure is initiated solely because it has been established that one of the cameras is capturing excessive images of the public road.

III

Analysis of compliance with applicable regulations

The images generated by a system of cameras or video cameras are personal data, since the physical image of a person is considered personal data worthy of protection, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, so their processing falls within the scope of this Regulation.

Non-compliance with this regulation may result in the commission of administrative infringements, without prejudice to other liabilities and the right to effective judicial protection.

Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data. Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the security of persons and property, as well as their facilities.

As indicated in this proposal in response to the allegations, it is considered that in this case the purpose of the processing initially complied with the provisions of the regulations, as it is established that the establishment where the cameras were placed (Gym B.B.B.) had been a victim of 5 alleged thefts/thefts/damages to its property that led it to install the video surveillance system as a means to preserve its security. For this reason, no infringement of the provisions of the aforementioned Article 6.1 of the GDPR has been attributed.

In accordance with what is stated in Legal Basis IV of the initiation agreement, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the security of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD must be complied with.

In this regard, Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, in the terms that will be developed below.

5.- The images may be retained for a maximum period of one month, except in those cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The controller must maintain a record of processing activities carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, assess them, and, where appropriate, adopt the appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, as long as there is a risk to the rights and...

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If there is a breach of the rights of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, dated April 4.

The data controllers who install these devices are obliged to know and comply with the requirements and principles established in the aforementioned regulations - regarding which ignorance cannot be claimed - especially when they have various sources of information, guides, and tools available for their assistance and interpretation, which are provided for guidance by the Spanish Data Protection Agency through its website [<https://www.aepd.es>] access to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the section "Guides and tools").

It is also of interest, in the case of processing low-risk data, the free tool Facilita (in the section "Guides and tools"), which, through specific questions, allows assessing the situation of the controller regarding the personal data processing they carry out, and if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

Once the main requirements of the applicable regulations, the background information in this file, and the instruction carried out have been presented, it is concluded that the respondent has ignored compliance with one of the principles of processing contained in Article 5 of the GDPR, specifically the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing activity, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same. In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

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The application of the data minimization principle in the context of video surveillance implies that images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

In general, cameras and video cameras installed for security purposes may not obtain images of public roads unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to ensure the safety of individuals and property, as well as their facilities.

Cameras installed cannot capture images of private spaces belonging to third parties and/or public spaces without a duly justified cause, nor can they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted. Images cannot be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces. Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

Regarding public spaces, the use of surveillance practices beyond the environment subject to installation will not be permitted under any circumstances, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Analyzing the evidence available in this file, as the entity itself acknowledges in its written allegations

regarding the initiation agreement, and as clearly shown by the photographs provided by it, it can be stated without a doubt that the field of vision of one of the monitors (frontal) was capturing an area of the public road beyond the fence, access door, and interior space that allowed access to the gym, recording both potential passersby and the surrounding spaces, adjacent buildings, and vehicles, being capable of recording personal data that were not "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

Therefore, the capture carried out was lawful in its purposes but was not proportional, which justifies sanctioning the breach of Article 5.1.c) of the GDPR, as the entity acted negligently by not orienting the camera in such a way that it did not capture the public road beyond the fence/door, or by not anonymizing the images using means such as privacy masks to conceal the excessively recorded images.

IV

Commission of administrative infringement

As previously stated, in accordance with the available evidence and the instruction carried out, it is considered that the facts presented...

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violating the provisions established in Article 5.1.c) of the GDPR, committing an administrative infraction classified under Article 83.5 of the GDPR, which states the following:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...)"

For the purposes of the statute of limitations for infractions, the infraction indicated in the previous paragraph would be subject to a 3-year period, as it is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall be subject to a three-year statute of limitations: those that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

V

Proposal for Sanction

The sanction provided for in the aforementioned Article 83.5 is therefore a fine of up to 20 million euros, which must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

Therefore, it is appropriate to scale the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

Taking these into account, in light of the facts adjudicated, the proposed sanction in the initiation agreement is maintained, and considering the degree of concurrent negligence and the concurrent circumstances, it is deemed that the sanction to be imposed should be an administrative fine of 500 euros.

In view of the above, the following

PROPOSAL FOR RESOLUTION

is issued by the Director of the Spanish Agency for Data Protection to sanction TITAN STRONG, S.L., with NIF B88048608, for an infraction of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, with a fine of 500 € (FIVE HUNDRED EUROS).

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, the entity being claimed is informed that it may, at any time prior to the resolution of this procedure, make a voluntary payment of the proposed sanction, which will entail a 20% reduction of the amount thereof. With the application of this reduction, the sanction would be established at 400 € (FOUR HUNDRED EUROS) and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that it opts to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, it must be made effective by depositing it into the restricted account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. Furthermore, it must send the proof of deposit to the General Subdirectorate of Inspection to proceed to close the file.

In virtue of the above, the claimant is notified of all that precedes, and is informed of the procedure so that within TEN DAYS it may allege whatever it considers in its defense and present the documents and information it deems pertinent, in accordance with Article 89.2 of the LPACAP.

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D.D.D.

INSTRUCTOR/A

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ANNEX

Index of file EXP202306046 (PS/00385/2023)

22/04/2023 Claim filed by A.A.A.

10/05/2023 Transfer of claim to TITAN STRONG, S.L.

05/06/2023 Allegations from the defendant entity TITAN STRONG, S.L.

22/07/2023 Communication to A.A.A. of the admission of the claim for processing.

16/08/2023 Submission of the complaint from the Municipal Police sent by the OFFICE OF THE DEPUTY MAYOR OF THE CITY COUNCIL OF MADRID.

26/09/2023 Agreement to initiate proceedings against TITAN STRONG, S.L., notified on the same day, September 26.

26/09/2023 Communication of the initiation agreement to the claimant.

26/09/2023 Communication of the initiation agreement to the CITY COUNCIL OF MADRID.

10/10/2023 Allegations from TITAN STRONG, S.L.

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SECOND: On November 29, 2023, the defendant has proceeded to pay the fine in the amount of 400 euros, making use of the reduction provided for in the resolution proposal transcribed above.

THIRD: The payment made entails the waiver of any action or appeal in the administrative route against the fine, in relation to the facts referred to in the resolution proposal.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency

for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or waiver of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202306046, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to TITAN STRONG, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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